

FEDERAL MARITIME COMMISSION
Office of Administrative Law Judges

20230930-DK-BUTTERFLY-1, INC. F/K/A BED BATH &
BEYOND INC., *Complainant*

DOCKET NO. 24-12

v.

EVERGREEN LINE JOINT SERVICE AGREEMENT (FMC
#011982) CONSISTING OF EVERGREEN MARINE CORP.
(TAIWAN) LTD.; EVERGREEN MARINE (UK) LIMITED; ITALIA
MARITTIMA SPA; EVERGREEN MARINE (HONG KONG) LTD.;
AND EVERGREEN MARINE (SINGAPORE) PTE. LTD.,
Respondents.

Served: November 17, 2025

ORDER OF: Alex M. CHINTELLA, *Administrative Law Judge.*

FOURTH AMENDED SCHEDULING ORDER

On November 13, 2025, the Commission received the Joint Status Report and Motion to Extend Deadlines filed by the parties on November 3, 2025. Dkt. 53. The motion seeks a one-week extension to the deadline for completing depositions of fact witnesses from October 31, 2025 to November 7, 2025. The parties state that the extension is needed to accommodate the schedule of a witness employed by Yusen Logistics, Complainant's booking agent for the relevant time period.

I previously extended the discovery schedule in part to allow the parties to obtain discovery from Yusen and, given the important of this information to the case, I find that there is good cause for the requested extension. The extension modifies an internal discovery deadline only and does not delay the overall proceeding. The joint motion is therefore **GRANTED** and the parties are **ORDERED** to abide by the following amended schedule:

Complete depositions of fact witnesses	November 7, 2025
Disclosure of initial expert reports, if any	November 21, 2025
Disclosure of rebuttal expert reports, if any	December 12, 2025
Complete expert depositions	January 6, 2026

Close of discovery	January 6, 2026
Complainant's initial brief, proposed findings of fact, and appendix	February 6, 2026
Respondent's opposition brief, responses to proposed findings of fact, proposed findings of fact, and appendix	March 6, 2026
Complainant's reply and responses to proposed findings of fact	March 20, 2026

SO ORDERED.

**ALEX
CHINTELLA**

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ALEX CHINTELLA
Date: 2025.11.17
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Alex M. Chintella
Administrative Law Judge